

EXHIBIT 31
(Public Version)

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN MOBILE ELECTRONIC
DEVICES AND COMPONENTS
THEREOF**

Investigation No. 337-TA-_____

CONFIDENTIAL DECLARATION OF UWE SCHNEIDER

I, Uwe Schneider, hereby declare as follows:

1. I am the Chief Financial Officer at trinamiX GmbH, a German company with its principal place of business at Industriestraße 35, 67063 Ludwigshafen am Rhein, Germany.

2. I submit this declaration in support of trinamiX Sensing LLC's ("trinamiX USA") and trinamiX GmbH's Complaint under Section 337 of the Tariff Act of 1930, as amended. Except as noted otherwise, I have personal knowledge of the facts set forth in this declaration and, if called as a witness, could competently testify thereto.

3. To prepare and confirm the facts set forth in this declaration, I reviewed trinamiX USA's financial records as kept in the ordinary course of business by trinamiX USA and trinamiX GmbH and spoke with employees of trinamiX USA and trinamiX GmbH.

I. TRINAMIX SENSING LLC

4. trinamiX USA is a subsidiary of trinamiX GmbH. trinamiX GmbH is headquartered in Ludwigshafen am Rhein, Germany, and develops and supplies infrared sensing solutions, including the face authentication, three-dimensional sensing, and material detection technology at issue in this investigation. In this declaration, I use "trinamiX" to refer collectively to the worldwide operations of trinamiX USA and trinamiX GmbH.

[REDACTED]

5. trinamiX originated from research at BASF, where scientists working on organic solar cells around 2010 discovered an unexpected material effect that could be used for sensing and three-dimensional measurement technologies. In 2014, BASF spun the three-dimensional camera project off into trinamiX GmbH, a wholly owned BASF subsidiary.

6. The scientific discovery led to the development of early 3D camera prototypes and the filing of patents for the underlying technology. Since then, trinamiX has expanded from a startup into a company focused on advanced sensing technologies, particularly biometric imaging, 3D vision, and near-infrared (NIR) spectroscopy solutions for consumer and industrial applications.

7. Today trinamiX operates internationally while remaining part of the BASF group, with a portfolio of sensing and imaging technologies aimed at improving decision-making, safety, and product authentication.

8. trinamiX USA was established in 2025 in order to build trinamiX's face authentication business in the United States and is located at 7800 Shoal Creek Boulevard, Suite 200N, Austin, Texas 78757. Austin was selected as the location for trinamiX USA's operations

[REDACTED]

[REDACTED] As of August 2026, [REDACTED] individuals work at trinamiX USA's Austin facility. Those individuals comprise the United States component of the biometric imaging business unit of the trinamiX business.

9. trinamiX USA's employees are skilled technical personnel. trinamiX USA employs a dedicated U.S. team of software engineers, hardware engineers, data scientists, and test technicians, who perform engineering, research, and development directed to the face authentication technology claimed in the Asserted Patents. That work includes development and

[REDACTED]

maintenance of the 3D and material sensing software pipeline, material detection improvements, machine learning pipeline development, and hardware setup and testing for the Domestic Industry Products.

10. trinamiX USA maintains laboratory and workshop facilities in Austin, including a laser and optical calibration room and a workshop equipped for three-dimensional printing and soldering.

II. THE DOMESTIC INDUSTRY PRODUCTS

11. The face authentication systems developed by trinamiX USA and trinamiX GmbH include their face authentication software libraries and software development kits (SDKs) combined with hardware contained in the ET-90 demonstrator, Cockatiel demonstrator, and [REDACTED] each including one or more processor(s), near infrared camera(s), and light projecting device(s) such as a vertical cavity surface emitting laser (VCSEL), to practice the patented technology. Specifically, these systems combine 2D face detection/recognition with trinamiX GmbH's unique, patent-protected beam profile analysis technology, enhancing an NIR image by laser dot projection and processing it through trinamiX's proprietary algorithms that analyze the information captured to simultaneously verify a user's identity and liveness.

12. The hardware modules used in each trinamiX face authentication system include a receiver (e.g., NIR camera), transmitter (e.g., dot and flood projectors), and a processing board executing the trinamiX Face Authentication software libraries. [REDACTED]

[REDACTED]

[REDACTED]

13. trinamiX also provides its customers with a SDK that may be used to test each system, including by providing applications showcasing the face authentication functionality.

14. I understand that through their Complaint, trinamiX USA and trinamiX GmbH have accused the proposed Respondent of infringing the following patents: U.S. Patent No. 12,530,925 (“the ’925 patent”), U.S. Patent No. 12,288,421 (“the ’421 patent”), U.S. Patent No. 12,456,334 (“the ’334 patent”), U.S. Patent No. 12,361,760 (“the ’760 patent”), U.S. Patent No. 12,298,394 (“the ’394 patent”), and U.S. Patent No. 12,332,352 (“the ’352 patent”) (collectively, the “Asserted Patents”).

15. I understand that the claim charts attached to the Complaint show how the products identified below practice the technology covered by the Asserted Patents. I also understand that the following products practice all six Asserted Patents: all trinamiX products that include trinamiX Face Authentication, including but not limited to e.g., the trinamiX Face Authentication software libraries and SDK, ET-90 demonstrator, Cockatiel demonstrator, [REDACTED] I refer to these collectively as the “Domestic Industry Products.”

III. TRINAMIX USA’S OPERATIONS ARE DEVOTED TO THE DOMESTIC INDUSTRY PRODUCTS

16. trinamiX USA was established for the purpose of developing and commercializing trinamiX GmbH’s face authentication, three-dimensional sensing, and material detection technology in the United States. It has no other lines of business, and it does not develop, make, or sell any other products.

[REDACTED]

17. In the ordinary course of business, trinamiX USA records the portion of employees' time devoted to each project they work on. Those records show that, between December 2025 and May 2026, personnel at trinamiX USA's Austin facility devoted [REDACTED] employee-months to the projects described below in paragraph 27.

18. Each of these projects, described further below in paragraph 27, is directed to the technology embodied in the Domestic Industry Products. None of trinamiX USA's research and development work is directed to any other subject matter. Accordingly, all of trinamiX USA's expenditures described below are directed to the Domestic Industry Products, and no allocation among products or lines of business is required.

IV. DOMESTIC INVESTMENTS WITH RESPECT TO THE DOMESTIC INDUSTRY PRODUCTS

19. Set out below are trinamiX USA's investments and budgeted investments in the United States in plant and equipment, labor or capital, and in research and development of the technology embodied in the Domestic Industry Products for December 2025, 2026, and 2027.

A. Investment in Plant and Equipment

20. trinamiX USA makes regular investments in the United States in the form of rent and the maintenance of its Austin office and laboratory. Those premises are used to conduct trinamiX USA's operations, all of which are directed to the Domestic Industry Products.

21. trinamiX USA has also invested in laboratory and workshop equipment at the Austin facility.

22. In its first five months (through April 2026), trinamiX USA invested [REDACTED] in plant and equipment in the United States.

23. trinamiX has also budgeted up to [REDACTED] in United States plant and equipment investments for 2026-2027.

[REDACTED]

B. Employment of Labor or Capital

24. By virtue of its employment of skilled technical personnel in Austin, trinamiX USA invests in the United States in the employment of labor directed to the Domestic Industry Products. Those employees perform software development, data science, computer vision, machine learning, data collection, and prototype and test work on the projects described below.

25. In its first five months (through April 2026), trinamiX invested [REDACTED] in labor or capital in the United States.

26. trinamiX has also budgeted more than [REDACTED] in United States labor or capital investments for 2026 and for 2027.

C. Investment in the Exploitation of the Technology, Including Engineering and Research and Development

27. trinamiX USA's employees perform engineering and development work in Austin on the technology embodied in the Domestic Industry Products. That work has included (i)

[REDACTED]

28. In its first five months (through April 2026), trinamiX invested [REDACTED] in research and development in the United States.

29. trinamiX has also budgeted approximately [REDACTED] in United States research and development investments for 2026-2027.

[REDACTED]

30. trinamiX's research, development, and commercialization efforts are continuing through the present, including, for example, an ongoing project for [REDACTED]

V. STEPS TAKEN TO ESTABLISH TRINAMIX USA'S DOMESTIC OPERATIONS

31. In addition to the investments described above, trinamiX USA has taken the following tangible steps to establish its operations in the United States with respect to the Domestic Industry Products.

32. First, trinamiX GmbH conducted a written site-selection study comparing four candidate U.S. locations against defined criteria, and selected Austin, Texas, as described above.

33. Second, trinamiX GmbH formed a U.S. legal entity, filed a Certificate of Formation in Delaware on April 30, 2025, and registered with the Texas Secretary of State on October 22, 2025.

34. Third, trinamiX USA (i) leased an office and laboratory facility in Austin, Texas, with the lease commencing on December 1, 2025, and (ii) equipped that facility with laboratory and workshop capability, including a laser and optical calibration room and a workshop equipped for three-dimensional printing and soldering.

35. Fourth, [REDACTED] individuals began work at trinamiX USA's Austin facility between December 2025 and March 2026, and trinamiX USA recently recruited a software development team lead.

36. Fifth, trinamiX USA's employees began work on the technology embodied in the Domestic Industry Products immediately upon completing their onboarding, and they have worked on that technology continuously since that time.

37. Sixth, trinamiX USA's Austin office has been outfitted with equipment used to calibrate sensor heads for its three-dimensional sensing and liveness detection methods, which are used for creating prototypes.

[REDACTED]

38. trinamiX's efforts to grow its U.S. presence are reflected in its budgets for 2026 and 2027. Budget and forecast data for trinamiX USA's operations is prepared and kept in the ordinary course of business, covering the balance of 2026 and the full year 2027.

39. For 2026, trinamiX USA's budgeting and forecast data provides for research and development expenditures by trinamiX USA of approximately [REDACTED] (including labor costs), and facility costs of approximately [REDACTED]. Those amounts represent approximately [REDACTED] and approximately [REDACTED] respectively, of the corresponding forecast worldwide amounts attributable to biometric imaging for the trinamiX business.

40. For 2027, the same data provides for research and development expenditures by trinamiX USA of approximately [REDACTED] (including labor costs), and facility costs of approximately [REDACTED]. Those amounts represent approximately [REDACTED] and approximately [REDACTED] respectively, of the corresponding forecast worldwide amounts attributable to biometric imaging for the trinamiX business.

I, Uwe Schneider, declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: September 2, 2026



Uwe Schneider
Chief Financial Officer
trinamiX GmbH